

ASSOCIATE JUSTICE  
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH  
TEMPLE OF JUSTICE  
MONROVIA, LIBERIA

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA  
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE  
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE  
BEFORE HER HONOR: SIE-A-NYENE G.YUOH.....ASSOCIATE JUSTICE  
BEFORE HIS HONOR: JOSEPH N. NAGBE .....ASSOCIATE JUSTICE  
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Jphiego-Liberia, represented by its Country Director,  
Montserrado County, Republic of Liberia ..... Movant )

Versus. )

) Motion to Dismiss  
) Appeal

Alex W. Blidii, Sr., represented by his Attorney-In-Fact,  
William M. Blidii, of the City Monrovia, Montserrado County,  
Republic of Liberia ..... Respondent )

GROWING OUT OF THE CASE: )

Alex W. Blidii, Sr., represented by his Attorney-In-Fact,  
William M. Blidii, of the City Monrovia, Montserrado  
County, ublic of Liberia ..... Appellant )

Versus )

) Appeal  
) Action of Damages  
) for Breach Contract

Jphiego-Liberia, represented by its Country Director,  
Montserrado County, Republic of Liberia ..... Appellee )

GROWING OUT OF THE CASE: )

Alex W. Blidii, Sr., represented by his Attorney-In-Fact,  
William M. Blidii, of the City Monrovia, Montserrado  
County, Republic of Liberia ..... Plaintiff )

Versus )

) Action of Damages  
) for Breach Contract

Jphiego-Liberia, represented by its Country Director,  
Montserrado County, Republic of Liberia ..... Defendant )

Heard: October 27, 2021

Decided: January 27, 2022

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Mark M. M. Marvey appeared for the movant/appellee. Counsellor Albert S. Sims appeared for the respondent/appellant.

The movant/appellee filed a motion requesting this Court to dismiss the appeal announced by the respondent/appellant from the final ruling entered by the Sixth Judicial Circuit Court, Civil Law Court, Montserrado County, on January 27, 2021 on an action of damages for breach of contract. The motion averred that while the respondent/appellant had filed its bill of exceptions within the time allowed by statute, that is, ten (10) days after the lower court entered final ruling in the case, he took no further steps to perfect his appeal, by the filing of an appeal bond and the service and filing of a notice of completion of appeal as mandated by statute, thereby depriving the Supreme Court of jurisdiction to hear and determine the appeal on its merits.

The counsel for the respondent/appellant conceded the legal soundness of the motion to dismiss as follows:

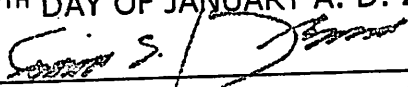
"At this stage, counsel for the respondent/appellant begs to inform Your Honors that he interposes no objection to the motion to dismiss for reasons that he did not complete the jurisdictional steps regarding the perfection of the appeal. And respectfully submits."

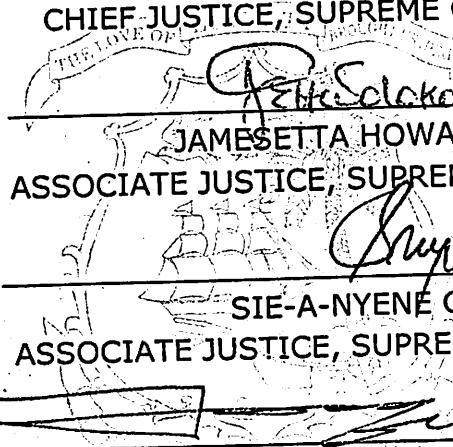
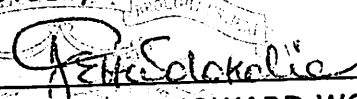
The Court having ascertained from the counsel representing the respondent/appellant as to whether his decision conceding the motion to dismiss was in consultant with his client and he having answered in the affirmative, and the Court been satisfied that the motion to dismiss is in keeping with law, it is hereby

ADJUDGED:

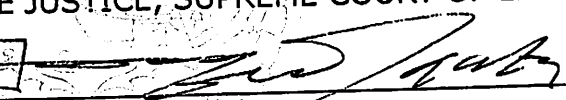
That the motion to dismiss the appeal is hereby granted and the appeal ordered dismissed as a matter of law. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume jurisdiction over this case and enforce its final ruling. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND THE SEAL  
OF THE SUPREME COURT OF LIBERIA, THIS  
27<sup>TH</sup> DAY OF JANUARY A. D. 2022.

  
FRANCIS S. KORKPOR, SR.  
CHIEF JUSTICE, SUPREME COURT OF LIBERIA

  
  
JAMESETTA HOWARD WOLOKOLIE  
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

  
SIE-A-NYENE G. YUOH  
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

  
YUSSIF D. KABA  
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

**NOTE:** Mr. Justice Joseph N. Nagbe being out of the bailiwick of the Republic when the case was called, did not participate in the hearing and determination of this case; hence, he did not sign this Judgment.